

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CLPA051353: MERCURY INSURANCE COMPANY vs MARLON OSMU RIVAS
CARRANZA**

**09/17/2026 in Department 43
Motion to Set Aside/Vacate Default Judgment**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Marlon Osmu Rivas Carranza's Motion Setting Aside Default, Vacating Default Judgment, Staying Execution of Judgment.

Tentative Ruling: Defendant Marlon Osmu Rivas Carranza's Motion Setting Aside Default, Vacating Default Judgment, Staying Execution of Judgment is DENIED.

On May 15, 2025, Plaintiff sent a letter to Defendant advising him that Plaintiff was seeking reimbursement from Defendant for sums paid on a covered loss for which Defendant was allegedly responsible. A Complaint was filed on September 23, 2025, by Plaintiff Mercury Insurance Company ("Plaintiff") against Defendant Marlon Osmu Rivas Carranza aka Marlon Osmu Rivas ("Defendant"), pleading a cause of action for subrogation.

A proof of service was filed with the court on November 12, 2025, indicating that the Defendant was personally served with the summons and complaint by a registered process server on October 15, 2025.

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Defendant did not respond to the complaint and on December 26, 2025, the court entered the default of Defendant.

On February 23, 2025, Defendant appeared before the Court in person for a Case Management Conference. At that hearing, the Court advised Defendant that a default had been entered against him on December 26, 2025. The Court scheduled an Order to Show Cause hearing for August 11, 2026, regarding the Plaintiff's failure to enter a default judgment in order to move the case forward.

On March 27, 2026, the Court entered judgment in favor of Plaintiff against Defendant in the total amount of \$20,917.15. Defendant was served with documents related to the default judgment. The proof of service was filed with the court on February 23, 2026, but is not dated.

Defendant filed this motion to vacate the judgment and set aside the default on August 11, 2026. Defendant's request for relief is based on, *"Self-represented defendant misunderstood the case status and the August 11, 2026, date after appearing."* (Motion ¶3.) Also, *"I am self-represented. I appeared in court on February 23, 2026, and misunderstood the status of the case and the August 11, 2026, date. I did not understand that default had already been entered on December 26, 2025, or that default judgment could be entered-before August 11, 2026. I attempted to contact plaintiff's counsel and did not receive a response. After receiving notice of judgment, I sought help and respectfully ask the Court to set aside the default and default judgment so I may file my response and participate in the case."* (Motion ¶ 8.)

Notwithstanding the fact that the Court clearly advised Defendant that the case was in default on February 23, 2026, the motion provides no reasonably plausible explanation of why Defendant waited until August 11, 2026, to file this motion. The Court said nothing about judgment being stayed until August 11, 2026, and there is no explanation of why he waited over four months after judgment was entered to file the motion. Particularly perplexing is the statement. *"I did not understand that default had already been entered on December 26, 2025, or that default judgment could be entered-before August 11, 2026."* The Court notified him on February 23, 2026, that default had been entered and he was advised of the request for entry of judgment through service of the supporting documents in late February or early March.

Moreover, the motion does not address the reason he did not respond to the complaint in the first place. He has presented the Court with nothing to challenge service and no explanation of why he failed to respond to the complaint and allowed default to be entered. There is zero evidentiary basis upon which the Court could justify vacating the entry of default. While the law favors trial on the merits, some evidence must be presented to demonstrate that relief is justified. Defendant has offered none.

For the foregoing reasons the motion is denied.